



POLICE DEPARTMENT

November 8, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202304412 (Incident Date: May 15, 2023) regarding Police Officer Eric Fabrizio, Tax No. 967059 (DADS No. 2024-31751)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202304412, pertaining to Police Officer Fabrizio. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Fabrizio would be detrimental to the Police Department's disciplinary process.

In this case, Police Officer Fabrizio responded to the scene after numerous 911 calls to the location. The Police Commissioner agrees with the CCRB in regard to the substantiated discourtesy allegation. After reviewing the body worn camera footage, the statements of all parties, and taking into account Police Officer Fabrizio's history with the Department, the Police Commissioner has determined to issue no disciplinary action for the remaining allegations.

In regard to the use of force allegation, the Police Commissioner has determined that Police Officer Fabrizio used the minimum amount of force necessary against the individual, to hold him in custody until evaluated by Emergency Medical Services (EMS). Furthermore, the Police Commissioner disagrees that the threat to remove to the hospital was improper. Viewing the totality of the circumstances, the Police Commissioner has determined that Police Officer Fabrizio acted in good faith. Police Officer Fabrizio was concerned after observing erratic behavior from the individual, and being informed by the 911 caller on scene, that the individual had just thrown a bottle at the 911 caller, and spat in his face. Once EMS determined the individual did not need to be transported to the hospital, the individual was allowed to leave the location. Additionally, the body worn camera footage indicates that Police Officer Fabrizio's more experienced partner made the decision to have EMS respond to the scene. Police Officer Fabrizio relied on the decision of his partner, who was the senior officer on scene.

Finally, the Police Commissioner disagrees that any conduct during this incident by Police Officer Fabrizio amounted to bias-based policing. The Police Commissioner believes there may have been some violations of Department procedures, such as failure to properly take a report. however,

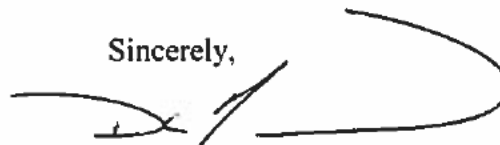
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that does not automatically equate to bias-based policing.¹ The Police Commissioner believes Police Officer Fabrizio's actions were done in good faith, and not influenced by the individual's protected class. The Police Commissioner believes there is no direct or circumstantial evidence that Police Officer Fabrizio took law enforcement action based on the individual's actual or perceived housing status.

Police Officer Fabrizio has been a member of the New York City Police Department for almost five (5) years and has not been the subject of any prior CCRB allegation, has no formal Department disciplinary history, and has exceeded expectations on his last three performance evaluations. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of two (2) vacation days for the allegation of discourtesy. However, the Police Commissioner intends to impose no disciplinary action for the allegations regarding the threat of removal to the hospital, use of force, and bias-based policing.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

¹ IAB noted the failure to document the complaints made during this incident and submitted a Letter of Referral and reinstructed Police Officer Fabrizio on Patrol Guide Procedure 207-01 at the end of his IAB interview. (CCRB Investigative Report page 21)



ERIC L. ADAMS
MAYOR

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The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

November 14, 2024

Re: CCRB Case No. 202304412
Police Officer Eric Fabrizio, Tax No. 967059

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 8, 2024 (hereinafter referred to as the “letter”) informing the Civilian Complaint Review Board (CCRB) of the Police Commissioner’s intent to impose no disciplinary action against Police Officer Eric Fabrizio for the substantiated allegations that he improperly threatened to remove an individual to the hospital, used excessive force against that individual, and engaged biased policing based on housing status.

First, the letter contends that PO Fabrizio used reasonable force, and that the threat of removal of the individual to the hospital was proper (Letter at 1-2). Moreover, it claims that PO Fabrizio depended on his more senior partner’s decision to remove the individual. However, during his CCRB interview, PO Fabrizio stated that it was a joint decision to call the ambulance and “EDP” the individual because of the individual’s erratic behavior. Moreover, as discussed on pages 10-12 and 15 of CCRB’s Investigative Recommendation Report in this case, the reasons PO Fabrizio gave for determining the individual was an EDP are either contraindicated by the video evidence in the case record or cannot support a reasonable belief that the individual posed a danger to themselves or anyone else. There was no evidence that the individual posed a danger to themselves or others when PO Fabrizio told the individual they would have to go to the hospital.

Second, the letter’s assertion that there is no direct or circumstantial evidence that PO Fabrizio took law enforcement action based on the individual’s actual or perceived housing status is incorrect, and also seem to rely on the “Police Commissioner’s belief” that Fabrizio’s actions were in “good faith,” and that the “violations of Department procedures, such as failure to take a report” do not “automatically equate to bias-based policing.”¹ In fact, there is a significant amount of circumstantial evidence in the case record that PO Fabrizio engaged in bias-based policing, types of circumstantial evidence which are supported by well-established law as

¹ “The Police Commissioner believes Police Officer Fabrizio’s actions were done in good faith, and not influenced by the individual’s protected class.” (Letter at 2).

legitimate factors in determining whether law enforcement activity amounts to bias-based policing. Notably:

1. the sequence of events leading up to the law enforcement action² (As described in the analysis of Allegations A-D, PO Fabrizio and his partner briefly interacted with the individual less than 30 minutes prior to the incident underlying the complaint. PO Fabrizio perceived the individual to be unhoused during their first interaction because the individual was lying under blankets in the street. The fact that PO Fabrizio perceived the individual to be unhoused prior to threatening to remove the individual to the hospital and forcibly and discourteously restraining the individual supports an inference that the individual's housing status played a role in the officer's decisions to take these law enforcement actions.³ The sequence of events also highlights how quickly PO Fabrizio and his partner decided the individual should be removed to the hospital, and how little information upon which that decision was based. The officers' decision that the individual was an EDP therefore was made after only a couple of minutes of interacting with and observing the individual, during which time the individual did not do anything to demonstrate that the individual posed a danger to anyone);
2. the falsity of PO Fabrizio's non-discriminatory explanations for his actions⁴ (PO Fabrizio justified threatening the individual with removal to the hospital and forcibly and discourteously detaining the individual against a wall because the individual was an EDP who did not want to go to the hospital voluntarily. As discussed at length in the analysis of Allegations C-F, this non-discriminatory explanation for their conduct is false. PO Fabrizio did not provide any credible non-discriminatory explanation for their determination that the individual was an EDP. The only reason PO Fabrizio identified for determining the individual was an EDP was the individual remaining in the middle of the street despite the officers' repeated instructions to move to the sidewalk. The individual was picking up belongings that were scattered in the street and walked back to the sidewalk before PO Ferguson and PO Fabrizio approached the individual and told the individual that they were going to the hospital);
3. PO Fabrizio's departure from customary practices⁵ (PO Fabrizio repeatedly ignored the individual when the individual told the officers that § 87(2)(b) had punched the individual. PO Fabrizio did not ask the individual any questions about this complaint nor took any other investigative steps regarding the alleged assault. This departed from his own conduct and the NYPD's customary practices); and

² The United States Supreme Court has held that when analyzing claims of discrimination, "[t]he specific sequence of events leading up to the challenged decision . . . may shed some light on the decisionmaker's purposes." *Village of Arlington Heights v. Metro. Housing Dev. Corp.*, 429 U.S. 252, 267 (1977). The events leading up to a challenged law enforcement action, in combination with other circumstantial evidence, can support a finding that the officer who took the action made decisions based on bias. See, e.g., *Rodriguez v. Barr*, 943 F.3d 134, 142-43 (2d Cir. 2019); *Ballew v. City of Pasadena*, 642 F.Supp.3d 1146, 1168 (C.D. Cal. Nov. 23, 2022); *Commonwealth v. Long*, 152 N.E.3d 733, 739-40 (Mass. 2020); *Marshall v. Columbia Lea Reg'l Hosp.*, 345 F.3d 1157, 1169 (10th Cir. 2003).

³ See *Marshall*, 345 F.3d at 1169; *Ballew*, 642 F.Supp.3d at 1165; *Long*, 152 N.E.3d at 740 n.9.

⁴ The falsity of a law enforcement officer's non-discriminatory explanation for their actions can also support a finding that the officer was trying to conceal a discriminatory motive. *Turkmen v. Hasty*, 789 F.3d 218, 256-57 (2d Cir. 2015), *rev'd on other grounds*, 137 S.Ct. 1843 (2017), citing to *Reeves v. Sanderson Plumbing Prods., Inc.*, 530 U.S. 133, 146-48 (2000).

⁵ A police officer's departure from their or their agency's customary practices in a given situation can support a finding that those officials acted with discriminatory intent. *Village of Arlington Heights*, 429 U.S. at 267; *Moore v. MTA*, 999 F.Supp.2d 482, 497-98 (S.D.N.Y. 2013); *Doe v. Village of Mamaroneck*, 462 F.Supp.2d 520, 548-49 (S.D.N.Y. 2006).

4. PO Fabrizio's violation of law⁶ and NYPD policy⁷ (As discussed in detail in the analysis of Allegations A-G, PO Fabrizio violated both the law and NYPD policy by threatening to remove the individual to the hospital when the individual posed no danger to themselves or others, forcibly and discourteously detaining the individual against a wall, and repeatedly cursing at the individual throughout the interaction. The officers also failed to offer the individual any services – including access to a shelter – as required by Patrol Guide Procedure 214-06. PO Fabrizio failed to document this incident through an AIDED report, as required by Patrol Guide Procedure 214-06 and Patrol Guide Procedure 221-13, or through a complaint report, as required by Patrol Guide Procedure 207-01);

all weigh in favor of the investigation's conclusion that the individual's actual or perceived housing status was more likely than not the determinative factor in the law enforcement actions taken by PO Fabrizio in the incident in question.

In sum, as set forth in the CCRB investigation's closing report in this case, the totality of the relevant circumstantial evidence in the case record establishes that PO Fabrizio more likely than not made an improper threat of forcible removal to the hospital, engaged in an improper use of force, and took one or more law enforcement actions during the May 15, 2023 incident based on the individual victim's actual or perceived housing status. Accordingly, the CCRB believes that the charges and specifications recommended for the substantiated threat of forcible removal, use of force, and bias-based policing allegations are appropriate and consistent with the goals of the NYPD's Disciplinary Matrix and asks that the Department serve these charges and specifications on PO Fabrizio.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board

⁶ See *Rodriguez v. Barr*, 943 F.3d at 143; *Millan-Hernandez v. Barr*, 965 F.3d at 148; *Feliz v. City of N.Y.*, 2022 U.S. Dist. LEXIS 26129, *28 (S.D.N.Y. Feb. 14, 2022).

⁷ See *Rodriguez*, 943 F.3d at 142; *Long*, 152 N.E.3d at 740 n.12.



POLICE DEPARTMENT

November 15, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

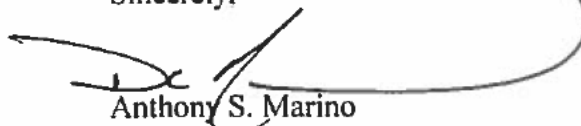
Re: CCRB Case No. 202304412 (Incident Date: May 15, 2023) regarding Police Officer Eric Fabrizio, Tax No. 967059 (DADS No. 2024-31751)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 14, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Eric Fabrizio, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Fabrizio for the reasons expressed in my November 8, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of two (2) vacation days for the discourtesy allegation. Furthermore, no disciplinary action will be imposed against Police Officer Fabrizio for the allegations regarding the threat of removal to the hospital, use of force, and bias-based policing.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office